

Court No. - 21

Case :- WRIT - C No. - 7298 of 2023

Petitioner :- Suhel Ahmad

Respondent :- State Of Up And 4 Others

Counsel for Petitioner :- Ashutosh

Counsel for Respondent :- C.S.C.,Alok Mishra

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Prashant Kumar,J.

Counsel for the respondent-Electricity Department prays for and is granted a week's time to obtain instructions.

Put up as fresh on 15.03.2023.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 2.3.2023

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Hon'ble Manoj Kumar Gupta,J.

Hon'ble Prashant Kumar,J.

The petitioner has challenged the recovery citation dated 25.06.2021 issued by the respondent-Electricity Department for recovery of electricity dues from the petitioner in a sum of Rs.3,74,409/- and decide the representation of the petitioner dated 03.01.2023.

The case of the petitioner is that the impugned demand is illegal. The petitioner has already filed representation dated 03.01.2023 disputing the amount being claimed from him but the respondents without deciding the same are seeking to recover the amount.

Sri Alok Mishra, learned counsel appearing for the respondent-Electricity Department very fairly states that the representation will be decided by respondent no.3 before proceeding any further in the matter.

Accordingly, the petition is **disposed of** with direction to respondent no.3 to treat the representation dated 03.01.2023 as having been filed under Clause 6.5 of the U.P. Electricity Supply Code 2005 and decide the same by means of a speaking order within three weeks from the date of receipt of true attested copy of the instant order along with photo copy of the representation dated 03.01.2023.

Until the representation/objection is decided, no coercive action

shall be taken against the petitioner.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 15.3.2023

Shivangi